

SENATE No. 733

The Commonwealth of Massachusetts

PRESENTED BY:

Lydia Edwards

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing a delivery network company surcharge for small businesses and EJ communities.

PETITION OF:

NAME:

Lydia Edwards

DISTRICT/ADDRESS:

Third Suffolk

SENATE No. 733

By Ms. Edwards, a petition (accompanied by bill, Senate, No. 733) of Lydia Edwards for legislation to provide a delivery network company surcharge for small businesses and EJ communities. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing a delivery network company surcharge for small businesses and EJ communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 1 of Chapter 187 of the Acts of 2016 is hereby amended by adding
2 the following definition:

3 “Delivery Network Company”, a corporation, partnership, sole proprietorship or other
4 entity that utilizes a digital network to assign couriers to provide pre-arranged delivery services
5 within the Commonwealth.

6 SECTION 2: Chapter 187 of the Acts of 2016 is hereby further amended by adding the
7 following section:

8 Section 24. (a) There shall be established within the department a division that shall be
9 under the general supervision and control of the commission and shall be under the control of a
10 director. The division shall promulgate rules and regulations and shall perform such functions as
11 necessary for the administration, implementation and enforcement of chapter 159A.

(b) Annually, not later than February 1, each delivery network company shall submit to the director of the division established in section 23 of chapter 25 the number of deliveries from the previous calendar year that originated in each city or town and the amount collected from delivery-assessments. Notwithstanding any other law. The per-delivery assessment shall be as follows: (i) a food delivery shall have a per-delivery assessment of \$0.20; and (ii) a goods delivery shall have a per-delivery assessment of \$0.50; (iii) alcohol and marijuana shall have a per-delivery assessment of \$1.40 and provided further, that the per-delivery assessment shall be based upon the pre-arranged delivery, as offered by the delivery network company and selected by the consumer. Any delivery item subject to equity programs shall be exempt throughout the duration of the equity program. In addition, prescription medicine and medical devices are also exempt.

Section 2MMMMM.

(c) The Transit Authority Fund under Section 23 of this Chapter shall be credited any monies transferred under section 12 of chapter 159A and all monies credited to or transferred to the fund from any other fund or source. Expenditures from the fund shall be subject to appropriation; provided, that 50 percent of the funds received shall be appropriated for the Equal Employment Opportunity Division business and innovation fund for grants for small business in underserved communities, facing displacement, and or hiring veterans or returning citizens; and provided further, that 50 percent of the funds received shall be appropriated for the MBTA; provided no less than 10 per cent of the funds collected by the MBTA to be expended for capital or operating expenses of waterfront transportation, fare free bus transportation, and the low income fare program.